



File No: EXP202309579

## RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On October 4, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against MOBILITY AUTOCENTRO, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202309579

## AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 26, 2023. The complaint is directed against MOBILITY AUTOCENTRO, S.L. with NIF B67921270 (hereinafter, the respondent). The reasons for the complaint are as follows:

"I receive spam from Citycar Sur despite being registered on the Robinson list. These are SMS advertisements from a short number containing a link to this address: <https://bit.ly/42LcpMp>. The link opens offers for cars, and I receive it on many occasions. It does not provide the option to unsubscribe from this spam list."

Along with the complaint, a screenshot of the SMS received on May 23, 2023, is provided, showing MBL Centro as the sender.

Upon consulting the privacy policy available on the website of the entity "MBL centro" to which the cited link refers, it is stated that MOBILITY AUTOCENTRO, S.L. is responsible for the processing of data, thus the referred sanctioning file is directed against this entity.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not received by the responsible party on the first attempt at notification, within the availability period, understanding the notification as rejected in accordance with the provisions of Article 43.2 of the LPACAP on July 18, 2023, as stated in the certificate in the file. Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, it was also sent by postal mail for informational purposes, with the notification being accepted at the Single Authorized Electronic Address on July 18, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means. However, as of today, well beyond the granted deadline, no response has been received to this forwarding letter.

THIRD: On August 26, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing, and this admission was notified to the complainant on August 27.

### LEGAL GROUNDS

I

#### Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of

July 11, on Information Society Services and Electronic Commerce (LSSI).

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other

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The "laws" establish that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the powers attributed to it by other laws."

## II

Prohibition of commercial communications made via email or equivalent electronic communication means.

Currently, "spam" refers to all types of unsolicited communication made electronically. Thus, "spam" is understood to mean any unsolicited message that typically aims to offer, market, or attempt to arouse interest in a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers regarding the volume of transmissions have allowed this practice to be carried out abusively and indiscriminately. The LSSI, in its article 21.1, expressly prohibits "the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients." That is to say, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities are disallowed without the express consent of the recipient, although this prohibition has an exception in section 2 of the aforementioned article 21, which authorizes the sending of commercial communications when "there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client." Thus, the sending of unsolicited commercial communications, outside the exceptional case of article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

In this regard, according to these regulations, consent must not only be prior but also specific and unequivocal, and it must be informed. This information must be complete and accurate regarding the sector of activity from which the recipient may receive advertising, with a warning about the right to refuse or withdraw consent. This information, thus configured, must be considered a necessary prerequisite for validating the expression of will of the affected party.

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## III

Prohibition of unsolicited or expressly authorized commercial communications

As already noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as an information society service and defined in its Annex as follows:

“f) ‘Commercial communication’: any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, the following will not be considered commercial communication: data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, nor communications related to the goods, services, or image offered when they are produced by a third party and without economic compensation.”

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines “Information Society Service” as “any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient.”

The concept of information society service also includes services that are not compensated by their recipients, to the extent that they constitute an economic activity for the service provider.

The aforementioned section adds that the sending of commercial communications is an information society service, as long as it represents an economic activity.

According to section d) of the aforementioned Annex, the recipient is the “natural or legal person who uses, whether or not for professional reasons, an information society service.”

From the above, it follows that when the commercial communication does not meet the requirements of the concept of Information Society Services, it loses its character as a commercial communication.

In this sense, the second paragraph of Annex f) of the LSSI indicates two cases that will not be considered commercial communication for the purposes of this Law. On one hand, data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, and on the other hand, communications related to the goods, services, or image offered when they are produced by a third party and without economic compensation.

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IV

Breach of obligation

Title VII of the LSSI under the heading “Infringements and Sanctions” contains the sanctioning regime applicable in the event that any of the infringements contained in the infringement table included therein occur.

Specifically, Article 37 specifies that “providers of information society services are subject to the sanctioning regime established in this Title when this Law is applicable to them.”

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the “natural or legal person who provides an information society service.”

As previously indicated, the LSSI in its Annex letter a) defines “Information Society Service” as “any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient. The concept of information society service also includes services that are not compensated by their recipients, to the extent that they constitute an economic activity for the service provider.”

Such Annex also indicates that (the underlining is ours): “Among others and as long as they represent an economic activity, the following are information society services: (...)

4th The sending of commercial communications. (...)”

In the present case, there is no doubt that the party being claimed is providing information society services, not only when sending electronic commercial communications via SMS/MMS or other means but also because it provides certain services at a distance by electronic means. Thus, it has been verified that through its MBL center website, commercial information of the MERCEDES BENZ brand is offered, and various electronic vehicle sales services are available (such as reserving or requesting a quote for their acquisition, among others).

As a provider of information services and responsible for data processing, the party being claimed is subject to compliance with the obligations established in the LSSI when providing these economic activities electronically, and especially when sending commercial communications.

V

Classification of the infringement

In accordance with the evidence available at this moment of

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Agreement to initiate the sanctioning procedure, and without prejudice to what results from the instruction, the claimant has demonstrated that the respondent sent him an SMS/MMS making commercial offers for the sale of vehicles through a link, in which the possibility of exercising the right to object to receiving further communications is not offered. The claimant does not state or mention the existence of a prior contractual relationship with the respondent.

The known facts could constitute an infringement, attributable to the respondent, for violating the provisions of Article 21 of the LSSI, which states the following: (the underlining is ours):

“Article 21. Prohibition of commercial communications made via email or equivalent electronic communication means.

1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the customer. In any case, the provider must offer the recipient the possibility to object to the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them. (...)”.

VI

Qualification of the infringement

In accordance with the provisions of Article 38, in its sections 3 and 4. d) of the LSSI, the violation of the provisions of Article 21 of the LSSI may constitute a serious or minor infringement:

“3. Serious infringements are: (...)

c) The mass sending of commercial communications by email or other equivalent electronic communication means, or their persistent or systematic sending to the same recipient of the service when such sendings do not comply with the requirements established in Article 21 (...)”.

“4. Minor infringements are: (...)

d) The sending of commercial communications by email or other equivalent electronic communication means when such sendings do not comply with the requirements established in Article 21 and do not constitute a serious infringement (...)”.

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Consequently, the infringement of Article 21 of the LSSI, in the terms indicated by the aforementioned Article 38.4.d), is generally classified as a minor infringement, although if the instruction establishes that there has been a mass sending of unsolicited commercial communications to different recipients or their persistent or systematic sending to the same recipient, in the terms indicated in the also cited Article 38.3.c), a serious infringement will occur for the purposes of the LSSI.

IX

#### Proposal for sanction

The commission of a minor infringement may be sanctioned with a fine of up to €30,000 in accordance with Article 39.1.c) of the LSSI, which stipulates the following:

“1. For the commission of the infringements listed in the previous article, the following sanctions shall be imposed:

c) For the commission of minor infringements, a fine of up to 30,000 euros.”

Furthermore, in accordance with the evidence available at this moment of the agreement to initiate the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following criteria established by Article 40 of the LSSI:

“The amount of the fines imposed shall be graded according to the following criteria:

a) The existence of intent.

b) The period of time during which the infringement has been committed.

c) The recurrence of the commission of infringements of the same nature, when declared by a firm resolution.

d) The nature and amount of the damages caused.

e) The benefits obtained from the infringement.

f) The volume of billing affected by the committed infringement.

g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.”

In view of the circumstances present in this case, in which the claimant demonstrates the receipt of a single SMS/MMS, stating that he has received several electronic communications from the claimant on his phone number despite being on the Robinson List, the amount of the fine that would initially correspond, without prejudice to what results from the instruction of the procedure, would be €2,000 (two thousand euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,  
IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against MOBILITY AUTOCENTRO, S.L., with NIF B67921270, for the alleged violation of Article 21 of the LSSI, classified as a minor administrative infraction under Article 38.4.d) of the same legal body.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would

be an administrative fine of €2,000.00 (two thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to MOBILITY AUTOCENTRO, S.L., with NIF B67921270, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its allegations submission, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a 20% reduction of the sanction to be imposed in this procedure.

With the application of this reduction, the sanction would be set at €1,600 (one thousand six hundred euros), resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €1,600 (one thousand six hundred euros) and its payment will imply the termination of the procedure.

The reduction for voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for the submission of allegations to the opening of the procedure. The voluntary payment of the aforementioned amount (€1,600 or €1,200) may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at [Insert the corresponding text for €1,200 (one thousand two hundred euros)].

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (€1,600 or €1,200), it must make the payment by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGGD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it may identify an email address before this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On October 17, 2023, the respondent has proceeded to pay the sanction in the amount of €1,200, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for the submission of allegations to  
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The initiation of the procedure entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

## LEGAL GROUNDS

I

### Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for the Protection of Data must process in exercising the competencies attributed to it by other laws."

II

### Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202309579, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to MOBILITY AUTOCENTRO, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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